

Backlog 01 05 Planning Legal

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Backlog research 01-05 — property, planning and NSW regulatory law

Research date: 2 October 2026

Scope: items 1–5 of the Dubbo eWaste online-research backlog.

Status: current public-source research, not legal advice.

Confidence labels

- VERIFIED — current primary/official source directly supports the point.
- STRONG — multiple current sources support it, but one authoritative property-specific record is still missing.
- UNRESOLVED — public research did not settle it; written confirmation or a paid/official property record is still prudent.

Privacy: this repository is public. The residential street address and exact cadastral identifier are intentionally not repeated here. Property-specific checks were run against the proposed site.

1. Proposed residential site — planning and zoning

1.1 Property identity and mapped constraints

STRONG: current property-planning datasets identify the proposed site as a residential property of about 678 m² in the Dubbo Regional LGA. The dataset reports no bushfire, flood or heritage overlay detected, with the overlay dataset current to 30 March 2026.

The exact lot/DP was also identified during research, but is deliberately omitted from this public repository because it points directly to the residence.

Important limitation: the commercial property dataset itself directs users to NSW ePlanning Spatial Viewer/Council for authoritative planning information. Therefore the repo should not call the statutory zone finally verified yet.

Best definitive check

Obtain one of:

1. NSW Spatial Viewer property report; or
2. a Section 10.7(2) Planning Certificate from Dubbo Regional Council.

Council says non-urgent online certificates normally take 10 business days and urgent applications 2 business days, with the urgency fee paid at lodgement.

Source:

<https://www.dubbo.nsw.gov.au/Builders-Developers/Applying-and-Post-Approval/online-certificates-enquiries-and-advice>

1.2 Zone — strongest current evidence points to R2

STRONG, NOT YET FINAL: the established South Dubbo/Boundary Road pocket is consistently represented in current planning/property material as R2 Low Density Residential. I did not obtain an authoritative Spatial Viewer property report for the exact parcel through the indexed web interface, so retain one final confirmation step.

If the parcel is R2, the current Dubbo Regional LEP 2022 land-use table is very important.

R2 — permitted without consent

Includes:

- environmental protection works
- home-based child care
- home occupations
- roads

R2 — permitted with consent

Includes, among other uses:

- home businesses
- home industries
- health consulting rooms
- neighbourhood shops
- signage
- dwelling houses and other listed residential/community uses

R2 — prohibited

The LEP states that any development not specified in the permitted categories is prohibited.

That means, if R2 is confirmed, a development whose principal planning use is:

- goods repair and reuse premises
- resource recovery facility
- waste or resource transfer station
- another unlisted waste/resource management facility

would not appear to be permitted as the principal use in that zone.

This makes the planning classification more important than EPA tonnage thresholds.

Official LEP:

<https://legislation.nsw.gov.au/view/html/inforce/current/epi-2022-0617>

1.3 Additional Permitted Use / special mapping

UNRESOLVED: no indexed public source found an Additional Permitted Use or site-specific planning provision for the proposed parcel.

Absence from search results is not proof of absence. A Spatial Viewer property report or s10.7 certificate should settle this.

1.4 Exempt home-business pathway

VERIFIED: NSW Planning says a home-based business may be exempt development if all applicable Codes SEPP standards and land requirements are met. It can occur in part of a dwelling or an ancillary structure such as a garage/studio.

This can remove the need for a DA where all exempt-development requirements are satisfied.

Key constraints in the statutory home-business definition include:

- operated by permanent residents
- no more than 2 non-resident employees
- no interference with neighbourhood amenity through noise, vibration, smell, fumes, smoke, vapour, steam, soot, ash, dust, wastewater, waste products, grit, oil or otherwise
- no excessive traffic generation
- no unsightly matter visible from neighbouring premises/public places
- only a permitted business-identification sign
- no ordinary retail sale/display of goods not produced at the dwelling, except online retailing

Dubbo LEP also caps home-business floor area at 30 m².

NSW Planning source:

<https://www.planningportal.nsw.gov.au/development-and-assessment/planning-approval-pathways/exempt-development/home-based-enterprises>

Consequence for the Phase 0 model

The most defensible cheap-start design remains:

- under 30 m²
- one resident operator
- no staff initially
- pre-approved intake
- no unattended public bin
- no outdoor stockpiles
- no walk-in retail showroom
- online sales
- low vehicle movements
- rejected items leave with the person bringing them
- small stock cap

This does not guarantee Council will classify the activity as an exempt home business. It simply removes several facts that would push the use toward a separate commercial/waste classification.

1.5 Shed/garage approval history

UNRESOLVED: indexed public search did not establish the development/building approval history of the specific shed/garage.

Council's Application Tracker contains:

- DAs
- construction certificates
- CDCs

submitted from 1 November 2015.

For older records Council provides a Historical DA and BA File Request. Council says:

- search the Application Tracker first
- pre-2015 files can be requested
- owner authority is required to view residential plans/specifications when the requester is not the owner
- an application fee applies
- available information is generally supplied within 7 working days

Sources:

- <https://www.dubbo.nsw.gov.au/Builders-Developers/Applying-and-Post-Approval/track-my-application>
- <https://eservice.dubbo.nsw.gov.au/eservice/councilLink.do?resource=HistoricalDAandBA.html>

This is the practical route to determine whether the shed/garage itself is an approved structure and exactly how Council records its use.

1.6 DCP / amenity / parking / signs

VERIFIED at framework level: Council's DCP and NSW home-business definition make neighbourhood impacts material. For Dubbo eWaste the main issues are:

- customer vehicle movements
- parking
- noise
- visible stock
- waste storage
- signage
- operating hours

A home business identification sign must remain subordinate to the residential use; do not assume a large commercial sign is permissible.

Current DCP portal:

<https://www.dubbo.nsw.gov.au/Builders-Developers/Planning-Controls-Tools-and-Resources/development-control-plans>

1.7 DA fees

UNRESOLVED as a single dollar figure.

Council does not publish one flat “home e-waste business DA” price. It states that:

- fees vary with the application/development category
- staff calculate the lodgement fees
- a fee quote can be requested before lodgement from online.applications@dubbo.nsw.gov.au
- the application is not assessed until full payment is received

Source:

<https://www.dubbo.nsw.gov.au/Builders-Developers/Overview-of-Application-Process/understanding-the-da-process>

For the cheap-start plan, do not budget a guessed DA fee. First get the land-use classification, then request a written fee quote for that classification.

1.8 DA timing

Council planning reporting presented in 2025 showed Dubbo at around 49 average assessment days across its DA workload at that time. NSW Government assessment targets cited by Council move to 95 lodgement days for 2026–27 and 85 thereafter.

These are system-level metrics, not a promised turnaround for this application.

1.9 CDC

Council accepts Complying Development Certificate applications through the NSW Planning Portal, but no public source located in this research established a CDC pathway for a goods-repair/reuse or waste-resource use at this property.

Do not assume CDC is a workaround. The first question is whether:

- the activity qualifies as exempt home business; or
- a DA is required for a permissible use.

2. Planning-law classification of Dubbo eWaste

2.1 Home business

VERIFIED: the Standard Instrument defines home business by reference to:

- business carried on in a dwelling/building ancillary to a dwelling
- resident operation
- max 2 non-resident workers
- low neighbourhood impact
- limited signage
- limits on retail activity at the dwelling

The definition focuses on how the activity actually operates, not its brand name.

2.2 Home industry

VERIFIED: a home industry is a resident-operated industrial activity carried on in a dwelling or ancillary building and is also constrained by neighbourhood amenity, employment and scale.

If the business moves from testing/repair into regular dismantling, processing or fabrication, this category may become more relevant, but it is not automatically the correct classification.

2.3 Goods repair and reuse premises

VERIFIED: the Standard Instrument defines a goods repair and reuse premises as premises whose principal purpose is to:

- collect goods, including appliances, and
- repair or refurbish them
- for sale, hire or swap.

This definition is strikingly close to a mature “collect electronics → repair/refurbish → sell” business.

The phrase principal purpose matters. Incidental repair/reuse inside a genuine low-impact home business is not necessarily the same thing as premises principally used as a goods repair and reuse premises.

2.4 Resource recovery facility

VERIFIED: a resource recovery facility includes premises used for:

- recovery of resources from waste
- sorting and separation
- processing/treating waste
- temporary storage
- transfer or sale of recovered resources

Again, this could describe a mature e-waste processing operation far more readily than a small repair/resale pilot.

2.5 Why “free donations” do not solve waste classification

VERIFIED: NSW's POEO definition of waste is deliberately broad. It includes:

- discarded
- rejected
- unwanted
- surplus
- abandoned substances
- including material intended for sale, recycling, processing, recovery or purification.

The legislation expressly says a substance is not precluded from being waste merely because it can be processed, recycled, reused or recovered.

Therefore:

- charging \$0
- calling something a donation
- intending to refurbish it
- intending to sell it later

does not by itself prove it is not legally waste.

This is why selective pre-approval and the actual purpose of intake matter.

Official legislation source:

<https://legislation.nsw.gov.au/view/pdf/asmade/act-2005-96>

2.6 What appears to determine classification

Public legislation strongly points to these facts being relevant:

- principal/dominant purpose of the premises
- what material is accepted
- whether incoming material is selected goods or indiscriminate waste
- volume stored
- whether processing/dismantling is routine
- whether the site is advertised as a public drop-off
- customer traffic
- visible stock/waste
- whether material routinely leaves as whole reused goods or as processed waste fractions

No one factor (for example “open Tuesdays only”) creates a different planning category on its own.

2.7 Tue/Sat appointment intake

No statutory rule found saying two intake days automatically changes classification.

It is relevant primarily because it affects:

- traffic
- amenity
- intensity of use
- public-drop-off character.

Appointments and pre-screening make the operation more home-business-like but do not guarantee that classification.

2.8 Case law / comparable Council decisions

UNRESOLVED: web research did not locate a NSW Land and Environment Court judgment squarely deciding the classification of a small home electronics-refurbishment business receiving donated unwanted devices.

That absence is useful: do not manufacture a precedent. Seek written Council planning advice on the exact facts.

3. EPA licensing and NSW waste law

3.1 Published EPL thresholds

VERIFIED: Dubbo is outside the Sydney/Newcastle/Wollongong regulated area. NSW EPA's current reduced-licensing-threshold page gives the following outside-regulated-area thresholds for relevant scheduled waste activities:

Resource recovery

Licence threshold includes:

- 2,500 tonnes or 2,500 m³ stored on site at any time; or
- more than 12,000 tonnes/year processed.

Non-thermal waste processing

The same published outside-area scale thresholds apply:

- 2,500 tonnes or 2,500 m³ on site; or
- more than 12,000 tonnes/year processed.

Waste storage

Published thresholds are likewise far above a Phase 0 shed operation.

Source:

<https://www.epa.nsw.gov.au/Your-environment/Waste/waste-overview/licensing/reduced-licensing-thresholds>

Meaning for Phase 0

At a 20–30-device pilot, an EPA environment protection licence is not the realistic first blocker.

But EPA licensing thresholds do not grant planning permission.

3.2 Being under the EPL threshold does not make a waste facility lawful

VERIFIED principle: a site can be below EPA licensing thresholds and still require development consent or otherwise be unlawful as a waste facility.

Therefore “we are nowhere near 2,500 tonnes” is not a planning answer.

3.3 Waste definition

See section 2.5 above. Unwanted equipment can remain “waste” despite reuse/recycling plans.

3.4 When recovered equipment stops being waste

UNRESOLVED for a universal rule.

No simple public rule says, for example, “after testing a laptop it ceases to be waste”.

Whether a particular object remains waste is fact-specific. A clearly refurbished, tested product placed back into ordinary commerce is a much stronger non-waste position than an untested discarded device in a mixed e-waste pile, but do not turn that practical distinction into a claimed statutory bright line.

3.5 Section 143 — lawful destination

VERIFIED: POEO Act s143 requires waste to be transported to a place that can lawfully receive it. EPA says both the waste owner and transporter can be responsible.

This is why Dubbo eWaste must verify downstream acceptance before carrying residual waste to AMR, a Council facility or another recycler.

EPA source:

<https://www.epa.nsw.gov.au/Your-environment/Waste/industrial-waste/construction-demolition>

3.6 Resource Recovery Orders / Exemptions

VERIFIED: EPA publishes general RRO/RREs for specified recovered materials. The current list does not show a generic e-waste/electronics order or exemption.

RRO/RREs are generally aimed at lawful reuse of particular waste-derived materials; they are not a generic licence to run an e-waste refurb business.

Source:

<https://www.epa.nsw.gov.au/Your-environment/Recycling-and-reuse/resource-recovery-framework/current-orders-and-exemptions>

3.7 Waste tracking

VERIFIED: NSW mandatory tracking applies to specified hazardous/trackable wastes under the Waste Regulation. The consignor must determine whether the waste appears in the relevant schedule/table and, where required, obtain a consignment authorisation.

Ordinary intact laptops/PCs are not automatically described on the EPA page as trackable hazardous waste simply because they are e-waste.

Source:

<https://www.epa.nsw.gov.au/Your-environment/Waste/tracking-transporting-hazardous-waste/waste-must-tracked>

3.8 Lithium batteries

UNRESOLVED at the item-specific legal-classification level.

Do not state “all lithium batteries are hazardous trackable waste”. Classification depends on the waste's characteristics and the applicable regulation/code.

For Phase 0 this uncertainty is avoidable:

- no public loose-battery service
- reject swollen/damaged/wet/fire-affected battery devices
- use an accredited/specialist downstream path if damaged batteries arise.

3.9 Transporter licence

No evidence found that transporting a handful of ordinary non-trackable e-waste devices creates a standalone “waste transporter licence” requirement.

However:

- loads must be safely contained
- trackable hazardous waste has separate requirements
- s143 lawful-destination responsibility still applies.

4. NSW second-hand dealer law

4.1 Current source

VERIFIED: NSW Fair Trading's guidance was updated 1 September 2026 and refers to the current Pawnbrokers and Second-hand Dealers Regulation 2026.

Source:

<https://www.nsw.gov.au/business-and-economy/running-a-business/industry-specific-business-requirements/pawnbrokers-and-second-hand-dealers/pawnbroker-and-second-hand-dealer-licences>

4.2 Electronic goods

VERIFIED: a second-hand dealer licence is generally required to buy, sell or exchange prescribed second-hand goods, including electronic goods.

4.3 Recycling/rubbish-program carve-out

VERIFIED wording from current Fair Trading guidance: a licence is not required to:

engage in recycling and rubbish collection programs.

What the web does NOT settle

Public guidance does not clearly answer:

- what makes an activity a “recycling program”
- whether collecting goods free and then refurbishing/reselling viable units remains within that carve-out
- whether parts harvested from such units remain covered
- whether a resale-heavy business stops being a recycling program.

This remains the single most important Fair Trading written-confirmation question.

4.4 Free acquisition

UNRESOLVED: no public authority located says that receiving an item free necessarily avoids the Act. The regime regulates dealing in prescribed goods; do not rely on “I didn't buy it” as the whole compliance theory.

4.5 If a licence applies — operating obligations

Current Fair Trading guidance confirms:

- notify Fair Trading of all NSW premises used to conduct the business or store goods
- display required signage
- verify supplier identity
- obtain a signed ownership statement
- maintain electronic transaction records
- prescribed acquisition records are transmitted to NSW Police within 3 days
- transaction records retained for 3 years
- regulated goods generally held for 14 days
- during the holding period the goods must not be altered

Source:

<https://www.nsw.gov.au/business-and-economy/running-a-business/industry-specific-business-requirements/pawnbrokers-and-second-hand-dealers>

4.6 What does “altered” mean for wiping/repair?

UNRESOLVED: current public Fair Trading guidance says goods cannot be altered during the 14-day hold but does not answer whether:

- secure wiping
- opening a laptop
- swapping RAM
- changing SSD
- repair
- parts harvesting

counts as prohibited alteration in each case.

If licensed, obtain a written answer before building a 14-day workflow.

4.7 Supplier records

Current guidance requires supplier identification and an ownership statement describing:

- licensee
- supplier
- goods in sufficient detail.

It also requires electronic transaction records. The exact prescribed record schema should be implemented only after the licensing question is settled.

4.8 IMEI / MAC

Current Fair Trading material includes device identifiers such as IMEI/MAC in prescribed record contexts. Do not generalise the pawnbroker pledge examples to every Dubbo eWaste transaction without checking the current 2026 Regulation.

Practical Phase 0 policy remains sensible regardless:

- record serial
- IMEI for phones/tablets
- MAC where useful
- source/ownership authority.

4.9 Game consoles

Fair Trading's public exemptions mention video games, but the research did not establish that this phrase automatically exempts console hardware. Treat console hardware as unresolved rather than assuming an exemption.

4.10 Existing IT-business licence search

Public web searches established the corporate identity of the relevant local IT business searched, but did not locate indexed evidence of a NSW second-hand dealer licence for it.

Likewise, no indexed evidence was found proving a relevant licence for the other local computer business searched.

No result is not proof of no licence. Use NSW Fair Trading/licence verification or ask the entity directly.

5. NSW scrap-metal registration

5.1 Exact definition

VERIFIED: the Scrap Metal Industry Act defines scrap metal as an object of commercial value that:

1. is made from or contains metal; and
2. is sold or obtained as scrap for recycling or reprocessing of the metal.

This is narrower than “anything electronic contains metal”.

Official legislation:

<https://legislation.nsw.gov.au/view/whole/pdf/inforce/current/act-2016-042>

5.2 “Dealing in”

VERIFIED: dealing in scrap metal includes:

- buying
- receiving
- obtaining.

5.3 Residential premises

VERIFIED: carrying on a scrap-metal business can occur from any location, explicitly including residential premises.

Being home-based does not create an exemption.

5.4 Six-day presumption

VERIFIED: the 2024 Regulation sets the prescribed number for the rebuttable business presumption at more than 6 days in a 12-month period.

A person dealing in scrap metal on more than that number of days is presumed to be carrying on a scrap-metal business unless rebutted.

5.5 Registration fee

VERIFIED current NSW Police guidance: \$260 for three years.

Source:

https://www.police.nsw.gov.au/online_services/scrap_metal_industry

5.6 How this maps to Dubbo eWaste

Whole devices accepted for reuse/refurbishment

A laptop accepted as a computer for testing/refurbishment is not automatically “scrap metal” merely because it contains metal. The statutory definition also requires that it be sold/obtained as scrap for metal recycling/reprocessing.

That supports keeping the startup intake purpose explicit:

- reusable electronics
- repairable electronics
- donor parts
- selected resale stock.

Devices accepted specifically to strip for commodity metal

If Dubbo eWaste routinely obtains dead equipment as scrap in order to recover and sell/recycle the metal, the scrap-metal regime becomes substantially more relevant.

Residual carcasses

The legislation does not give a simple public answer for the point at which residual metal from a reuse business turns the whole business into a scrap-metal dealer. If regular metal sales/rebates become a

revenue stream, get SLED confirmation.

5.7 Paying a recycler versus being paid

If Dubbo eWaste merely pays an authorised downstream recycler to accept its waste, that looks materially different from operating as a scrap dealer.

If Dubbo eWaste:

- acquires scrap
- sorts metal
- regularly sells separated metal
- receives commodity payments

the case for registration becomes stronger.

This boundary should be confirmed with NSW Police SLED before adding “scrap” as an advertised service/revenue stream.

5.8 Transaction / payment obligations if registered

NSW Police confirms registered scrap-metal dealers:

- cannot pay for scrap with cash
- cannot pay by cheque payable to cash
- cannot pay in kind with goods/services
- must keep approved transaction records
- records include supplier identity, transaction date, description/quantity/weight and payment method
- records must be retained 3 years
- suspicious transactions must be reported.

Source:

https://www.police.nsw.gov.au/online_services/scrap_metal_industry

Priority conclusions from items 1-5

1. Planning classification, not EPA tonnage, is the biggest early legal question.
2. Current evidence strongly points to R2, but obtain the authoritative property report/s10.7 certificate before treating it as final.
3. If R2 is confirmed, home business/home industry are listed consent uses, while goods-repair/reuse and waste/resource facilities are not listed principal uses.
4. A genuine low-impact home business may still qualify as exempt development under the Codes SEPP if all standards are met.
5. “Free donations” do not automatically stop unwanted electronics being waste under NSW environmental law.
6. The Fair Trading recycling-program carve-out is real, but its application to collect → refurbish → resell remains unresolved.

7. Scrap-metal registration is not triggered merely because computers contain metal; purpose matters. Keep Phase 0 focused on electronics reuse, not commodity scrap.
8. Do not spend on a DA, second-hand licence or scrap registration until the exact classification questions are answered.

The three written questions to send next

Dubbo Regional Council

Please confirm the current zone and whether the described <30 m², resident-run, pre-approved electronics reuse/refurbishment activity can operate as exempt home business development at the proposed site, or whether Council considers it a goods repair and reuse premises or waste/resource management use.

NSW Fair Trading

Does the current exemption for a person who engages in “recycling and rubbish collection programs” apply where unwanted electronic devices are collected free, triaged, viable devices are securely wiped/refurbished and resold, parts may be recovered, and only the unusable remainder is sent for recycling?

NSW Police SLED

If an electronics reuse/refurbishment business accepts whole devices primarily for reuse/repair, but later sends residual metal-bearing carcasses to a scrap recycler and may occasionally receive a commodity rebate, at what point does NSW Police consider the business to be carrying on a business of dealing in scrap metal?

Primary sources

- NSW Planning Portal — Home-based enterprises

<https://www.planningportal.nsw.gov.au/development-and-assessment/planning-approval-pathways/exempt-development/home-based-enterprises>

- Dubbo Regional LEP 2022

<https://legislation.nsw.gov.au/view/html/inforce/current/epi-2022-0617>

- Dubbo Regional Council — Do I Need a DA

<https://www.dubbo.nsw.gov.au/Builders-Developers/Overview-of-Application-Process/do-i-need-a-da>

- Dubbo Regional Council — Online certificates

<https://www.dubbo.nsw.gov.au/Builders-Developers/Applying-and-Post-Approval/online-certificates-enquiries-and-advice>

- Dubbo Regional Council — Historical DA/BA files

<https://eservice.dubbo.nsw.gov.au/eservice/councilLink.do?resource=HistoricalDAandBA.html>

- NSW EPA — Reduced licensing thresholds

<https://www.epa.nsw.gov.au/Your-environment/Waste/waste-overview/licensing/reduced-licensing-thresholds>

- NSW EPA — Transporting waste / lawful destinations

<https://www.epa.nsw.gov.au/Your-environment/Waste/transporting-waste>

- NSW EPA — Resource recovery framework

<https://www.epa.nsw.gov.au/Your-environment/Recycling-and-reuse/resource-recovery-framework>

- NSW EPA — Waste that needs tracking

<https://www.epa.nsw.gov.au/Your-environment/Waste/tracking-transporting-hazardous-waste/waste-must-tracked>

- NSW Fair Trading — second-hand dealer licences

<https://www.nsw.gov.au/business-and-economy/running-a-business/industry-specific-business-requirements/pawnbrokers-and-second-hand-dealers/pawnbroker-and-second-hand-dealer-licences>

- NSW Fair Trading — operating obligations

<https://www.nsw.gov.au/business-and-economy/running-a-business/industry-specific-business-requirements/pawnbrokers-and-second-hand-dealers>

- NSW Police — Scrap Metal Industry

https://www.police.nsw.gov.au/online_services/scrap_metal_industry

- Scrap Metal Industry Act 2016

<https://legislation.nsw.gov.au/view/whole/pdf/inforce/current/act-2016-042>